IMPARTIAL ANALYSIS OF MEASURE ___
Appointment of the City Treasurer

The proposed measure asks voters whether the office of City Treasurer for the City of Los Banos should change from an elected office to an appointed office.

Currently, the City Treasurer is elected by the voters of the City. Under California law, general law cities are required to have a City Treasurer. California Government Code section 36508 authorizes the voters of a general law city to determine whether the City Treasurer will be elected or appointed.

If approved by a majority of voters, this measure would amend the Los Banos Municipal Code to provide that the City Treasurer shall be appointed by the City Council rather than elected. The City Treasurer would continue to perform the duties assigned by state law, local ordinances, and City policies. Those duties generally include the safekeeping and investment of City funds, compliance with state laws governing public investments and the handling of public funds, and other treasury-related responsibilities.

If the measure is approved:

- The office of City Treasurer would become an appointive office.
- Future City Treasurers would be selected by the City Council through an appointment process rather than by election.
- The City Council would be authorized to recruit and appoint qualified candidates based upon professional qualifications, education, certifications, experience, and other job-related criteria.
- Individuals appointed as City Treasurer would not be required to be registered voters or residents of the City unless otherwise required by applicable law or established by the City.
- The City Treasurer would continue to perform the duties prescribed by California law and the Los Banos Municipal Code.

If the measure is not approved, the office of City Treasurer will remain an elected office, and future City Treasurers will continue to be elected by the voters of the City of Los Banos under existing law.

This measure changes only the method by which the City Treasurer is selected. It does not eliminate the office of City Treasurer or alter the statutory responsibilities assigned to that office.

A "Yes" vote is a vote to change the office of City Treasurer from an elected office to an appointed office.

A "No" vote is a vote to retain the City Treasurer as an elected office.

This Measure was placed on the ballot by the city council.

The above statement is an impartial analysis of Ordinance or Measure ____. If you desire a copy of the ordinance or measure, please call the elections official's office at 209-827-2424 and a copy will be mailed at no cost to you.

/s/ Mary F. Lerner
City Attorney